

## 24STCV15880 24STCV15880

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-09-18

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Case Number: 24STCV15880 Hearing Date: September 18, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

CLIFFTON

DACUNO LLEGO,

Plaintiff,

vs.

LOS ANGELES COUNTY METROPOLITAN

TRANSPORTATION AUTHORITY,

Defendant.

Case No.:

24STCV15880

Hearing

Date:

September 18, 2026

## ORDER

### DENYING MOTION FOR LEAVE TO AMEND COMPLAINT

#### I. BACKGROUND

##### Plaintiff

Cliffton Dacuno Llega ("Llega") allegedly slipped and fell while riding Defendant Los Angeles County Metropolitan Transportation Authority ("Metro"), resulting in injury. Llega sued Defendants for general negligence and premises liability.

On February 3, 2026, Llega filed the instant motion for leave to amend the complaint. Metro filed an opposition. Llega replied.

#### II. LEGAL STANDARD

##### Pursuant to Code of Civil

Procedure section 473, subdivision (a)(1),<sup>[1]</sup>

"[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code."

##### A motion to amend a

pleading before trial must 1) include a copy of the proposed amendment or amended pleading; 2) state what allegations in the previous pleading are to be deleted and where, by page, paragraph and line number, the deleted allegations are located; and 3) state what allegations are proposed to be added, if any, and where, by page, paragraph and line number, the allegations are located. (Cal. Rules of Court rule 3.1324, subd. (a).) It must also include a support declaration specifying 1) the effect of the amendment; 2) why the amendment is necessary and proper; 3) when the facts giving rise to the amended allegations were discovered; and 4) the reason why the request for amendment was not made

earlier. (Id. at subd. (b).)

### III. DISCUSSION

Llego's motion for leave to amend the complaint fails to comply with the requirements of California Rules of Court rule 3.1324, as it did not attach a copy of the proposed complaint, does not specifically outline the allegations to be deleted and/or added by page, paragraph, and line number, and does not contain a declaration testifying to the effects of the amendment, why the amendment is necessary and proper, when the facts were discovered, or why the request was not made earlier.

California Rules of Court rule 3.1324, subdivision (a), requires any motion to amend a pleading include a copy of the proposed amendment and state what allegations are to be added and deleted, identified by page, paragraph, and line number. Llego's motion does not include a copy of the proposed First Amended Complaint, nor it does not identify the allegations to be added or deleted beyond generally describing the statutory basis for his claims. This does not satisfy the requirements of California Rules of Court rule 3.1324, subdivision (a)(1)-(3).

Llego also failed to submit a declaration addressing any of the issues required by California Rules of Court rule 3.1324, subdivision (b). The attached declaration only provides a summary of events leading up to this request; essential information is excluded.

Llego has failed to comply with California Rules of Court rule 3.1324's requirements. Therefore, the Court denies the motion.

### IV. CONCLUSION

Llego's motion for leave to amend is DENIED.

Metro is ordered to give notice.

DATED:

September 18, 2026

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Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at [SMCDEPT730@lacourt.org](mailto:SMCDEPT730@lacourt.org) with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.